



File No.: EXP202208539

RESOLUTION No.: R/00522/2023

Considering the complaint filed on October 14, 2022, with this Agency by A.A.A., (hereinafter the complainant), against HUMANITAS BILINGUAL SCHOOL TORREJÓN DE ARDOZ, S.L., (hereinafter the respondent), for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF B86204716 and their request, as stated by the complainant, did not receive the legally established response. They requested access to the academic records of their minor children from the respondent, subsequently adding another request for a psychometric test and the psychopedagogical evaluation conducted on one of their daughters. They provided various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

However, this Agency initially considered the right to have been attended to and rejected the complaint.

Namely:

“... Once the reasons presented by the respondent, which are in the file, have been analyzed, this Agency considers that the responsible party has attended to the complaint presented. For this reason, in accordance with the provisions of Article 65.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data AGREES not to admit the complaint for processing...”

The complainant, disagreeing with the resolution, filed a motion for reconsideration, which was resolved by this Agency in a favorable manner, leading to the current complaint.

In the resolution of the appeal:

“... the appellant has indicated that when visiting the center, they did not receive all the requested documents, having received a document prepared ad hoc and not those that the respondent actually manages regularly, which they believe was done to avoid delivering the relevant real data in the processing of a judicial procedure against the respondent. They also point out specific documents, such as medical reports, whose delivery they substantiate and which the respondent has denied access to, according to communication dated October 7, 2022. Furthermore, the respondent would have stated that delivering the documentation of their daughters' files would negatively affect the rights and freedoms of unspecified third parties and that the email of the appellant is not a sufficiently secure means of delivering the data (...)

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Therefore, following the doctrine established by the Court of Justice of the European Union, the annotations made by teachers regarding a student fall within what is understood as that student's personal data, and thus cannot be excluded from the application of data protection regulations and the rights that protect them. In this way, the denial of access made by the responding party would not be sufficiently justified, and therefore, the present appeal should be upheld. (...) In this case, along with the appeal for reconsideration, new relevant documentation has been provided regarding the matters raised, demonstrating the lack of attention to the right exercised in the terms established by the GDPR. In view of the resolution of the appeal, this Agency, on April 27, 2023, sends to the responding party once again the original complaint, the appeal for reconsideration, and the resolution of that appeal so that, in light of what has occurred, the appeal has been upheld, and they may provide arguments or demonstrate full compliance with the right.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of claims filed with the AEPD, consisting of transferring them to the Data Protection

Delegates designated by the data controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was again transferred to the responding entity for them to analyze it and respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on April 27, 2023, it was agreed to resend the documentation to the respondent to address the right, and it was informed that the maximum period to resolve the present procedure, which is understood to have commenced with the signing of the favorable resolution of the appeal, will be six months.

The aforementioned agreement granted the responding entity a hearing period, so that within ten working days, they could present any arguments they deemed appropriate. This entity has not submitted any arguments.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions that

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The responsibilities assigned to them in Article 57 include, among others, the enforcement of the Regulation and the promotion of awareness among the controllers and processors regarding the obligations that pertain to them, as well as addressing the complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring them to respond to this Agency within one month and to demonstrate that they have provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, as its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision

regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure, the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, with the request being deemed fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information regarding the source of the data (if the data has not been obtained directly from the data subject), the existence of...

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automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

In the case analyzed here, the complainant exercised their right of access to the academic data of their minor children and, after what has been stated in the "FACTS" section of this resolution, this request has been left incomplete.

The reasons that this Agency considers to have led to the incomplete access are detailed in the resolution of the appeal. The respondent has had access to this document; however, they have not demonstrated that they have addressed the right of access subsequently nor have they responded to this Agency during the allegations period to present their position.

Therefore, in the case analyzed here, with the documentation present in the procedure, as can be inferred from the appeal submitted and resolved favorably and from the documentation provided by the respondent in the complaint process, it is verified that the access granted by the respondent entity is incomplete.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. and to urge HUMANITAS BILINGUAL SCHOOL TORREJÓN DE ARDOZ, S.L. with NIF B86204716, to send to the complainant, within ten working days following the notification of this resolution, a certification that addresses the requested right of access or provides a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution may result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to HUMANITAS BILINGUAL SCHOOL TORREJÓN DE ARDOZ, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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